

Appendix: Damage or Loss Protocol

Damage or loss protocol for products, tools, displays or demonstration elements.
Working legal/commercial draft. This translated version is prepared for reading,
download and local counsel review before use in the selected country.

1. Event Description

The protocol records when and how the product was damaged or lost and who discovered the event.

2. Evidence

Photos, customer information, courier records or internal notes should be attached when available.

3. Responsibility

Responsibility and settlement effect must be decided according to the agreement and local mandatory law.

Country localisation matrix

Market | Adaptation

UK | Use UK governing law and jurisdiction where applicable; review UK GDPR, PECR, product liability and B2B sale terms.

USA | Use state-specific law and venue; review business opportunity/franchise triggers, earnings claims, warranty, sales tax and privacy rules.

Canada | Use province-specific law; review CASL, privacy, bilingual requirements where applicable, warranty, tax and product safety.

Australia | Review Australian Consumer Law, unfair contract terms, privacy, product safety, warranty, import and tax clauses.

South Africa | Review POPIA, electronic communications, Consumer Protection Act exposure, product liability, import, tax and dispute wording.

Germany | Use German-law drafting; review BGB/HGB, GDPR/BDSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Austria | Use Austrian-law drafting; review ABGB/UGB, GDPR/DSG, UWG marketing rules, warranty, retention of title and standard-term controls.

Switzerland | Use Swiss-law drafting; review the Code of Obligations, revised FADP, competition rules, warranty and cross-border data transfers.

Local clauses before signature

Area | To review before use

Governing law | Country, venue, language and dispute resolution

Privacy | Roles, notices, consent and data transfers

Product & sales | Warranty, liability, safety, tax and import

Marketing | Electronic communication, claims, testimonials and pricing displays

Document table

Field | Value

Product | [Name / SKU]

Event date | [Date]

Condition | [Damaged / missing / incomplete]

Proposed action | [Repair / replacement / write-off / investigation]

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